

**NACCHO**National Aboriginal Community
Controlled Health Organisation

**Deed of Variation
between
NACCHO and Urapuntja Health Service Aboriginal Corporation
for The Elder Care Support Program**

1. Date

This Deed is made on 30/05/2025

2. Parties

This Deed is made between:

1. The National Aboriginal Community Controlled Health Organisation, ABN 89 078 949 710 (NACCHO); and
2. Urapuntja Health Service Aboriginal Corporation, ABN: 45449518275 (the 'Grantee').

3. Context

- A) The Parties entered into an agreement on 6/04/2023 under which NACCHO offered funding to the Grantee for The Elder Care Support Program (the 'Agreement').
- B) NACCHO now seeks to vary the Agreement executed on 6/04/2023, through this deed of variation.

4. Amendments

With effect from the Date of Execution of this Deed, the Agreement is amended as follows:

- 1 Delete the end of contract date mentioned in Section 3. Term of the Contract: *30 June 2025* to be replaced with: *30 June 2026*.
- 2 Delete sub point (a) in Section 4. Services to be Provided and replace with: *Employ and manage 4 FTE staff to fill the roles of 2 Aged Care Connector(s) and 2 Aged Care Support Coordinator(s)*.
- 3 Delete Clauses 11. Intellectual Property, 12. Indemnity, 13. Insurances, 15. Dispute Resolution, 18. Repayment of Funds, 19. Carry Forward of Funds, 20. Notices, 21. Conflict of Interest, and 23. Privacy. Replace with the following clauses.

11. Intellectual Property

11.1. The Parties agree that the ownership of Intellectual Property which exists prior to the commencement of Services under this Contract ("**Pre-existing IP**") will not be altered or transferred or assigned merely by virtue of its use for the purposes of this Contract.

11.2. Each Party to this Contract assigns to each other Party a royalty-free, non-exclusive, non-transferrable licence to use its Pre-existing IP, or other Background IP, to the extent necessary to carry out the Project. Each Party agrees to comply with any reasonable directions of another Party regarding the use of that other Party's Pre-existing IP.

11.3. All Intellectual Property Rights in the Contract material (including any materials created for the purpose of the contract) vest in NACCHO on creation.

11.4. NACCHO agrees that for any intellectual property that is created or comes into existence as a result of this program of work it will grant to the Service Provider, the relevant funding body and, if applicable, the

11.5. Commonwealth and its agencies a world-wide, perpetual, irrevocable, royalty-free, non-exclusive, transferable licence to use, reproduce, modify, adapt, publish, broadcast, and communicate any materials created for the purpose of this Contract.

11.6. This clause survives the expiration or earlier termination of this Contract.

12. Indemnity

12.1. The Service Provider indemnifies NACCHO, the relevant funding body, the Commonwealth and its employees (where applicable) against any claim, loss or damage arising in connection with the Service.

12.2. The Service Provider's obligation to indemnify NACCHO, the relevant funding body, the Commonwealth, and its employees (where applicable) will reduce proportionally to the extent any act or omission involving fault on the part of NACCHO, the relevant funding body or the Commonwealth contributed to the claim, loss or damage.

12.3. This clause survives the expiration or earlier termination of this Contract.

13. Insurances

13.1. The Service agrees to maintain adequate public and professional liability insurance, and workers compensation insurance in accordance with legislation for as long as any obligations remain in connection with this Contract and provide proof of insurance to NACCHO upon request.

13.2. This clause survives the expiration or earlier termination of this Contract.

15. Dispute Resolution

15.1 The Parties agree not to initiate legal proceedings in relation to a dispute arising under this Contract unless they have first tried and failed to resolve the dispute by negotiation.

15.2 Unless **clause 17.3** applies, the Parties agree to continue to perform their respective obligations under this Contract when a dispute exists.

15.3 The Parties may agree to suspend performance of the Contract pending resolution of the dispute. Failing settlement by negotiation in accordance with **clause 15.1**, the Parties may agree to refer the dispute to an independent third person with power to intervene and direct some form of resolution, in which case the Parties will be bound by that resolution. If the Parties do not agree to refer the dispute to an independent third person, either Party may initiate legal proceedings.

15.4 Each Party will bear their own costs in complying with this **clause 15**, and the Parties will share equally the cost of any third person engaged under **clause 15.4**.

Deed of Variation

15.5 The procedure for dispute resolution under this clause does not apply to any action relating to termination, cancellation or urgent interlocutory relief.

18. Repayment of Funds

18.1 If any amount of the Contract funds:

- a) has been spent other than in accordance with this Contract; or
- b) is additional to the requirements of the Service;

Then NACCHO may by written notice:

- c) require the Service Provider to repay that amount to the NACCHO; or
- d) require the Service Provider to deal with that amount as directed by NACCHO; or
- e) deduct the amount from subsequent payments of the Contract Funds or amounts payable under another agreement between the Service Provider and NACCHO

18.2 If NACCHO issues a notice under this Contract requiring the Service Provider to repay the specified amount of Contract Funds:

- a) the Service Provider must do so within the time period specified in the notice;
- b) NACCHO may recover the amount under this Contract as a debt due to NACCHO without further proof of the debt being required.

19. Carry Forward of Funds

19.1 If any of the Contract Funds remain unspent on 30 June of the relevant financial year, the Service Provider should notify NACCHO of the amount of unspent funds and how the remaining Contract Funds will be used and the expected timeframe for this to occur.

19.2 Upon receipt of a request to retain Contract Funds, NACCHO will assess this request within 20 business days of receipt of the request and

- a) advise the Service Provider their request to carry forward funds for the identified Service has been approved; or
- b) request the Service Provider return unspent Contract fund to NACCHO.

20. Notices

20.1 Each party to this Contract agrees to promptly notify the other Party of anything reasonably likely to adversely affect the undertaking of the Service, management of the Contract funds or its performance of any of its other requirements under this Contract.

20.2 A notice given by a Party under this Contract must be in writing and addressed to the other Party's representative as set out in the Contract details or as most recently updated by notice given in accordance with this clause.

20.3 The Service Provider must immediately issue NACCHO a notice on becoming aware of a significant event.

21. Conflict of Interest

21.1 The Service Provider must provide NACCHO with a signed Conflict of Interest Declaration (**see Attachment A**).

21.2 Where a proposed organisation declares a conflict of interest, they must also provide NACCHO with a Conflict-of-Interest mitigation strategy when signing the Contract for Services.

21.3 Other than those which have already been disclosed to NACCHO, the Service Provider warrants that, to the best of its knowledge, at the date of this Contract neither it nor its officers have any actual, perceived, or potential conflicts of interest in relation to the services to be provided.

21.4 If during the term of the Contract, any actual, perceived, or potential conflict arises or there is any material change to a previously disclosed conflict of interest, the Service Provider agrees to:

Deed of Variation

- a) notify NACCHO promptly and make full disclosure of all relevant information relating to the conflict; and
 - b) take any steps NACCHO reasonably requires to resolve or otherwise deal with that conflict.
- 21.5 If the Service Provider fails to notify NACCHO under this **clause 21** or is unable or unwilling to resolve or deal with the Conflict as required, NACCHO may terminate this Contract in accordance with the provisions of **clause 17**.

23. Privacy

- 23.1 When dealing with Personal Information in carrying out the Service, the Service Provider agrees to:
- a) comply with the requirements of the *Privacy Act 1988 (Cth)*;
 - b) have a Health Service Privacy Policy in place that outlines how patients' information is collected stored and used consistent with the requirements of the *Privacy Act 1988* and other relevant legislation; and
 - c) not to do anything that would be a breach of an Australian Privacy Principle.

-
- 4 Delete Section 24i Payment for services statement of total amount and replace with: *The total amount to be paid to the Service Provider is \$ 1,555,811.94 (GST excl.)* Payment includes salary oncosts (superannuation, leave administration and IT costs), travel, communications, and program funding; and the Fair Work Commission Supplement.
 - 5 Change milestone **description** for payment 3 for 2024-25 Financial year at Section 24 Payment for services **from:** *Final Report (2022-23 to 2024-25)* **to:** *Progress Report 1 January 2025 to 31 May 2025*. Payment 3 amount is unchanged.
 - 6 Delete last (no payment) milestone for 2024-25 Financial year at Section 24 Payment for services: *Financial Acquittal for 2024-25*
 - 7 Add the rows below to the table in Section 24 Payment for Services as follows:

Payment Number	Milestone Description	Description	Amount (excl. GST) \$	GST \$	Total payment (incl. GST) \$
2024-25					
Payment 4	Execution of Deed of Variation	20% of the 2025-26 contract extension	138,417.76	13,841.78	152,259.53
		100% Fair Work Commission Supplement	37,641.15	3,764.12	41,405.27
2024-25 SUBTOTAL			512,154.91	51,215.49	563,370.40

2025-26

Deed of Variation

Payment 1	Activity Work Plan and Risk Management Plan for 2025-26 AND Financial Acquittal AND Underspend form (where relevant) Delivered by: 31 August 2025	20% of the 2025-26 contract extension Payment will be made for delivery of: Completed Activity Workplan and Risk Management plan covering period from 1 July 2025 to 30 June 2026 AND Financial Acquittal for 1 July 2024 to 30 June 2025 AND Underspend form for 2024-25FY (where relevant)	138,417.76	13,841.78	152,259.53
Payment 2	Progress Report Delivered by: 30 January 2026	50% of the 2025-26 contract extension Payment will be made for delivery of completed Progress Report covering period from 1 June 2025 to 31 December 2025	346,044.40	34,604.44	380,648.83
Payment 3	Final Report AND Financial Acquittal report 2025-26 Delivered by: 31 July 2026	10% of the 2025-26 contract extension	69,208.88	6,920.89	76,129.77
2025-26 SUBTOTAL			553,671.03	55,367.10	609,038.14
TOTAL			1,555,811.94	155,581.19	1,711,393.14

Deed of Variation

8 Add row to bottom of table in Section 26 Reporting (i) Activity Work Plan

Activity Work Plan for 2025-26	Proposed activity covering period from 1 July 2025 to 30 June 2026	31 August 2025
--------------------------------	--	----------------

9 Add rows to bottom of table in Section 26 Reporting (ii) Progress Report

5.	Progress Report	Activities undertaken during the period from 1 January 2025 to 30 June 2025	31 August 2025
6.	Progress Report	Activities undertaken during the period from 1 June 2025 to 31 December 2025	30 January 2026

10 Add rows to bottom of table in Section 26 Reporting (iv) Financial Acquittal

Financial Acquittal Report and Underspend form for 2024-25FY (where relevant)	<u>Financial Acquittal Report</u> provided to NACCHO for each whole Financial Year, and part of a Financial Year, during which the Supplier is required to perform activities. The report must include: - Financial declaration certifying funds have been used for the purposes intended in line with this Contract to be signed by the Chief Executive Officer and a Chief Finance Officer or equivalent covering the whole Financial Year; and - Audited Income and Expenditure Statement and Other Financial Information, covering the whole Financial Year <u>Underspend form</u> completed where relevant. A template will be provided by NACCHO. The form will detail and justify any program underspends as at 30 June 2025 and a proposed plan to spend these funds in the next financial year.	30 September 2025
Financial Acquittal Report	Provided to NACCHO for each whole Financial Year, and part of	31 July 2026

Deed of Variation

	a Financial Year, during which the Supplier is required to perform activities. The report must include: - Financial declaration certifying funds have been used for the purposes intended in line with this Contract to be signed by the Chief Executive Officer and a Chief Finance Officer or equivalent covering the whole Financial Year; and - Audited Income and Expenditure Statement and Other Financial Information, covering the whole Financial Year	
--	---	--

11 Amend Section 26 Reporting (iii) Final Report to require the report covers the entire contracted activity period (including this extension period) and new due date of 31 July 2026.

12 Delete Clause 27. COVID-19 and Force Majeure. Replace with the following.

27. Force Majeure

27.1 If the Service Provider is affected, or likely to be affected, by a Force Majeure Event:

- it must promptly without delay notify NACCHO of that fact; and
- the Service Provider's obligations under this Contract are suspended to the extent to which it is affected by the Force Majeure Event and such suspension will be effective for as long as the Force Majeure Event continues.

Force Majeure Event means any event which is

- beyond the control of and has occurred without the fault or negligence of the Service Provider;
- was not foreseeable by the Service Provider and NACCHO at the date of this Contract;
- the Service Provider is unable to prevent or overcome by the exercise of reasonable diligence, which includes floods, fires, earthquakes or other physical natural disaster, acts of war or terrorism, riots, civil or military disturbances, national or state-wide industrial disputes (excluding actions by, between or originated among the employees of the Service Provider).

13 Include additional clauses as follows:

Deed of Variation

29. Variation

29.1 Any agreement or understanding to vary or extend the Contract will not be legally binding upon either Party unless in writing and agreed to by both parties.

30. National Anti-Corruption Legislation

30.1. As a Service Provider under a Commonwealth Government funding arrangement, the Service Provider acknowledges for the purposes of the *National Anti-Corruption Commission Act 2022 (Commonwealth)*, it is regarded as a contracted service provider for the purposes of this legislation and its conduct under this Contract may be subject to investigation in line with this Act.

30.2. **Illegal or Corrupt Practice** means directly or indirectly:

- a. making or causing to be made, any offer, gift, payment, consideration or benefit of any kind to any party, or
- b. receiving or seeking to receive, any offer, gift, payment, consideration or benefit of any kind from any party, as an inducement or reward in relation to the performance of the Service, which would or could be construed as an illegal or corrupt practice.

30.3. The Service Provider warrants that the Service Provider, its officers, employees, contractors, agents and any other individual or entity involved in carrying out the Services have not, engaged in an Illegal or Corrupt Practice.

30.4. The Service Provider agrees not to, and to take all reasonable steps to ensure that its officers, employees, contractors, agents and any other individual or entity involved in carrying out the Services do not:

- a. engage in an Illegal or Corrupt Practice; or
- b. engage in any practice that could constitute the offence of bribing a foreign public official contained in section 70.2 of the Criminal Code Act 1995 (Commonwealth).

30.5. The Service Provider agrees to inform NACCHO within five business days if the Service Provider becomes aware of any activity as described in clause 30.2 in relation to the performance of the Services.

31. Modern Slavery Act

31.1. The Service Provider must take reasonable steps to identify, assess, and address risks of Modern Slavery practices in the operations and supply chains used in the provision of the Goods and/or Services.

31.2. If at any time the Service Provider becomes aware of Modern Slavery practices in the operations and supply chains used in the performance of the Contract, the Service Provider must, as soon as reasonably practicable, take all reasonable action to address or remove these practices, including where relevant by addressing any practices of other entities in its supply chains.

31.3. NACCHO may require the Service Provider to provide it was an annual statement of how it has complied with the requirements of the Modern Slavery Act.

Deed of Variation

14 In Clause 28, delete “NACCHO representative and address” tables and replace with the two tables below:

Name of representative	Dr Dawn Casey PSM FAHA
Position	Deputy Chief Executive Officer
Physical address	Level 5 East, 2 Constitution Ave, Canberra ACT 2601
Postal address	PO Box 130, Civic Square ACT 2601
Business hours telephone	02 6246 9300
E-mail	Dawn.Casey@naccho.org.au

Name of representative	Monica Barolits-McCabe
Position	Executive Director, Aged Care Programs
Postal/physical address	PO Box 130, Civic Square ACT 2601 Level 5 East, 2 Constitution Ave, Canberra ACT 2601
Business hours telephone	Ph: (02) 6246 9384 Mob: 0483 062 856
E-mail	aged.care@naccho.org.au monica.barolits-mccabe@naccho.org.au

5. Entire agreement and interpretation

- The parties confirm all the other provisions of the Agreement and, subject only to the amendments contained in this Deed, the Agreement remains in full force and effect.
- This Deed and the Agreement, when read together, contain the entire agreement of the parties with respect to the parties' rights and obligations under the Agreement.
- Unless otherwise specified or the context otherwise requires, terms that are defined in the Agreement have the same meaning in this Deed

Signatories

Executed as a Deed

Signed for and on behalf of the National Aboriginal Community Controlled Health Organisation (NACCHO) by the relevant Delegate, in the presence of:

(Name of NACCHO Representative)

(Signature of NACCHO Representative)

....../....../.....

(Position of NACCHO Representative)

(Name of Witness in full)

(Signature of Witness)

....../....../.....

Signed for and on behalf of Urupuntja Health Service Aboriginal Corporation in accordance with its rules, and who warrants that he/she is authorised to sign this Agreement:

(Name and position held by Signatory)

(Signature)

....../....../.....

(Name and position held by
Witness)

(Signature of Witness)

....../....../.....